



Corneal Tissue Act 1986

1986 CHAPTER 18

An Act to permit the removal of eyes or parts of eyes for therapeutic purposes and purposes of medical education and research by persons who are not medically qualified, subject to appropriate safeguards. [26th June 1986]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section 1 of the Human Tissue Act 1961 (removal of parts of bodies for medical purposes) shall be amended as follows.

(2) In subsection (3), after “(4)” there shall be inserted “, (4A)”.

of Human
Tissue Act
1961.
1961 c. 54.

(3) For subsection (4) (removals to be effected only by registered medical practitioners) there shall be substituted the following subsections—

“(4) No such removal, except of eyes or parts of eyes, shall be effected except by a registered medical practitioner, who must have satisfied himself by personal examination of the body that life is extinct.

(4A) No such removal of an eye or part of an eye shall be effected except by—

(a) a registered medical practitioner, who must have satisfied himself by personal examination of the body that life is extinct; or

(b) a person in the employment of a health authority acting on the instructions of a registered medical practitioner who must, before giving those instructions, be satisfied that the person in question is sufficiently qualified and trained to perform the removal competently and must also either—

(i) have satisfied himself by personal examination of the body that life is extinct, or

(ii) be satisfied that life is extinct on the basis of a statement to that effect by a registered medical practitioner who has satisfied himself by personal examination of the body that life is extinct.”.

(4) After subsection (9) there shall be added the following subsection—

“(10) In this section ‘health authority’—

1977 c. 49.

(a) in relation to England and Wales, has the meaning given by section 128(1) of the National Health Service Act 1977;

1978 c. 29.

(b) in relation to Scotland, means a Health Board constituted under section 2 of the National Health Service (Scotland) Act 1978.”.

Short title,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Corneal Tissue Act 1986.

(2) This Act shall come into force at the end of the period of two months beginning with the day on which it is passed.

(3) This Act does not extend to Northern Ireland.